



NMHS POLICY

Information Management: Management of Freedom of Information (FOI) Applications

Scope (Staff)	All North Metropolitan Health Service (NMHS) staff
Scope (Area)	All NMHS sites and services.
Summary	This Policy outlines the minimum requirements in order to appropriately manage Freedom of Information (FOI) applications submitted to NMHS under the <i>Freedom of Information Act 1992</i>. This amendment includes: • Added requirements to align with the WA Health Information Classification Policy (MP 0146/20). • Policy sponsor updated to Area Director Business, Information and Performance, Corporate Operations.
Approval	Area Director Business, Information and Performance, Corporate Operations
Sponsor	Area Director Business, Information and Performance, Corporate Operations
Contact	Manager Records Management
Version	1.1
Next Review Date	01/07/2026 (Extension from 06/01/2026 granted)
NSQHS Standards	Clinical Governance (Std 1)
ISD Number	4114
Status	CURRENT

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1. Aim

This Policy outlines the minimum requirements in order to appropriately manage Freedom of Information (FOI) applications submitted to North Metropolitan Health Service (NMHS) under the [Freedom of Information Act 1992](#) (FOI Act).

2. Background

In order to promote and facilitate open and accountable government, the [Freedom of Information Act 1992](#) was enacted to provide the public with a legal right of access to documents held by government agencies. This means the public can seek to gain access to any documents held by NMHS, within certain circumstances.

FOI applications usually fall into two categories:

- Clinical or patient requests under FOI relate to patient information and may seek access to contentious or highly confidential personal information.
- Corporate information generally relates to the overall business function at a whole of organisational level.

FOI applications at NMHS are managed at individual NMHS hospitals or NMHS Corporate Area by the relevant FOI Coordinators employed in those hospitals/areas. The FOI Coordinator at NMHS hospitals manage FOI requests relevant to patients and clinical functions. The NMHS Corporate FOI Coordinator manages FOI requests related to Corporate Office business functions; whole-of-NMHS functions; and highly contentious matters approved by the Chief Executive.

3. Risk

Non-compliance with this Policy may result in a breach of mandatory and legislative requirements, compromised integrity and security of NMHS information, financial loss, and/or reputation and image damage to NMHS.

4. Policy Principles

All departments managing FOI applications at NMHS sites and services must have documented processes in place to ensure timely processing of FOI requests that align with legislative requirements. Refer to [Appendix 1 Flowchart – Managing FOI Applications](#) and [Appendix 2 Four Phases of Managing FOI Applications](#).

FOI Coordinators and staff members who conduct Internal Reviews must have undertaken training with the Office of the Information Commissioner (OIC) to understand the concepts of managing FOI applications.

4.1 Receiving an FOI Application

All FOI applications submitted to NMHS must be managed and processed by FOI Coordinators. Staff who receive FOI applications outside the established process must forward the application onto the relevant FOI Coordinator. This must be done immediately to avoid a delay in processing.

All FOI application should be forwarded to the FOI Coordinator at relevant site(s)/area:

Site/Area	Scope	Contact
Graylands Hospital	Clinical and patient requests	FOI.GH@health.wa.gov.au
King Edward Memorial Hospital		FOI.KEMH@health.wa.gov.au
Osborne Park Hospital		OPH.FOI@health.wa.gov.au
Sir Charles Gairdner Hospital		SCGH.FOI@health.wa.gov.au
NMHS Corporate	Corporate and whole-of-NMHS requests and all other queries	NMHS.FOI@health.wa.gov.au

NMHS sites and services must ensure that all staff (e.g. Consumer Liaison Services, ward clerks, etc.) are aware of their responsibilities and know how to contact the FOI department in regards to FOI applications.

4.2 Processing an FOI Application

Under the **FOI Act**, all FOI applications must be processed and responded to within 45 calendar days from the date a valid application is lodged (day zero). The FOI Coordinator can negotiate with the applicant to extend this timeframe. This must be agreed to in writing by the applicant.

To facilitate effective management, the response period has been split into four (4) distinct phases to enable timely completion of the process requirements (Refer to [Appendix 2](#)).

If the FOI Coordinator considers the request a contentious issue, they must advise the stakeholders (Refer to [section 5. Definition](#)).

4.3 Internal Review

Applicants have the right to apply for Internal Review if they feel the original decision is flawed. Applicants have 30 days from the Notice of Decision to lodge an Internal Review.

If an Internal Review has been requested, and the FOI Coordinator considers the request a contentious issue, they must advise the stakeholders (Refer to [section 5. Definition](#)).

Internal Reviews must be undertaken by an Internal Reviewer who is not subordinate to the initial decision-maker.

The Internal Reviewer is required to deal with the application as if it were an initial application and make a new decision about the documents. The Internal Reviewer must consider the original request and can confirm, vary or reverse the original decision under review.

The applicant must be notified of the decision on Internal Review within 15 days of NMHS receiving the FOI application.

4.4 External Review

Should the applicant feel that an Internal Review decision is flawed, they have the right to lodge a complaint or request for External Review with the Office of the Information Commissioner (OIC). Refer to Appendix 1 Flowchart - Managing FOI Applications.

Written complaints about NMHS FOI decisions must be lodged with the OIC within 60 days (by applicants) or within 30 days (by third parties).

The OIC will then examine the documents in order to make a preliminary assessment of the complaint and the method to be used to determine the issue between the parties.

- Where necessary, the OIC will immediately call for the original copies of the documents in dispute together with NMHS' FOI file on the matter and may request a schedule listing the documents.
- The Information Commissioner from the OIC aims to resolve as many complaints as possible by conciliation. This process will commence as soon as possible and continues until the matter is resolved or it becomes apparent that no further progress towards settlement or resolution is possible. At this point a formal review will usually commence in a manner determined by the OIC.
- Usually the matter is determined on the basis of written submissions without any of the participants appearing before the OIC.

The OIC will make a formal decision in writing either confirming, varying or setting aside NMHS' decision.

- A copy of the decision is provided to the complainant, NMHS and any other party to the complaint.

Having received the decision, it is the responsibility of the NMHS to put it into effect. It is also the responsibility of NMHS at this stage to arrange for the retrieval of the documents being held by the OIC office.

5. Definitions

Applicant	The person or organisation that requests information from NMHS under the FOI Act .
Contentious	Any FOI application that can potentially lead to reputation, legal, regulatory, financial, controversy or other risk to NMHS.
Decision maker	The officer that reviews FOI applications and makes a decision about access to material. At NMHS the FOI Coordinator is the decision maker for initial FOI applications.
External Review	If an applicant disagrees with the internal review decision, they may then apply to the Office of the Information Commissioner (OIC) for an External Review. The OIC will complete the External Review and hand down their findings which are binding on both parties.
FOI Application	Application for access to documents under the FOI Act .
FOI Coordinator	Refer to officers responsible for coordinating the management of the FOI application.
FOI Register	A register maintained by FOI Coordinators that tracks progress of FOI applications received. The register can be in any format including 'FOI Track'.
Information classification	The categorisation of information into classes pertaining to its status as official information as well as its level of confidentiality and sensitivity. Refer to WA Health Information Classification Policy (MP 0146/20) for requirements around information classification.

Information Commissioner	Position established under the FOI Act : an independent officer reporting directly to the WA Parliament that provides external review of agency FOI decisions. The Information Commissioner is supported by the Office of the Information Commissioner (OIC).
Internal Review	If an applicant does not agree with the original decision, they can ask for an Internal Review within NMHS. The Internal Review is performed by a separate staff member (the Internal Reviewer).
Internal Reviewer	The NMHS staff member assigned to perform internal reviews. The Internal Reviewer must be in a position more senior to the original decision maker.
Notice of Decision	Written notice to an applicant documenting the decision and reasoning regarding their FOI request. Under the FOI Act , NMHS must provide an applicant with a written notice of decision regarding the outcome of the FOI application.
Office of the Information Commissioner (OIC)	OIC is the government agency responsible for the administration of the FOI Act in WA. The OIC provide advice on FOI matters and also provide external reviews for any complaints coming from the processing of an FOI application.
Relevant Executive Director	Executive Directors who are responsible for the portfolio to which the information requested under the FOI Act relates.
Stakeholders	Refer to NMHS staff that may be involved in an FOI application. They may include: • Executive Director Business and Performance • Area Director Business Information and Performance • NMHS Office of the Chief Executive • Manager Corporate Communications • NMHS General Counsel • Relevant Executive Director

6. Roles and Responsibilities

Positions	Roles and Responsibilities
FOI Coordinators	1) Processing of FOI applications in accordance with the FOI Act and this policy. 2) Maintaining a register of FOI applications. 3) Providing annual statistics to the OIC to determine its effectiveness, relevance and currency. These statistics are requested by the OIC at the end of each financial year. 4) Undertaking required FOI training including refresher training when available.
Internal Reviewers	1) Review of decisions by FOI Coordinators in accordance with the FOI Act and this policy.

	2) Undertaking required FOI training including refresher training when available.
All NMHS staff	1) Forwarding on FOI applications in a timely manner received outside the established process. 2) Not releasing information to the public or patients outside the established process outlined in relevant NMHS policies and procedures.

7. Compliance and Evaluation

Compliance with the Policy is Mandatory. NMHS sites and services Executive Directors are responsible for ensuring local compliance with this Policy.

8. Document Control

Version	Amendment(s)	TRIM Ref	Published Date
1.0	Published version	D/23/866	06/01/2023
1.1	Amendment - Added requirements to align with the WA Health Information Classification Policy (MP 0146/20). - Policy sponsor updated to Area Director Business, Information and Performance, Corporate Operations.	D/25/98435	09/04/2025 (Approved 08/04/2025)

Related policies, procedures and guidelines

[WA Health Mandatory Policies/Frameworks](#)

[WA Health Discipline Policy MP 0127/20](#)

[WA Health Information Access, Use and Disclosure Policy MP 0015/16](#)

[WA Health Information Classification Policy MP 0146/20](#)

[NMHS Policies](#)

[NMHS Authorisations, Delegations and Decision Making Schedule](#)

[NMHS Healthcare Record – Access, Use and Disclosure Policy](#)

[NMHS Healthcare Record Management Policy](#)

[NMHS Information Breach Response Procedure](#)

References

[Freedom of Information Act 1992](#)

[Office of the Information Commissioner \(OCI\) FOI Coordinators Manual](#)

[OCI Training for FOI Coordinators](#)

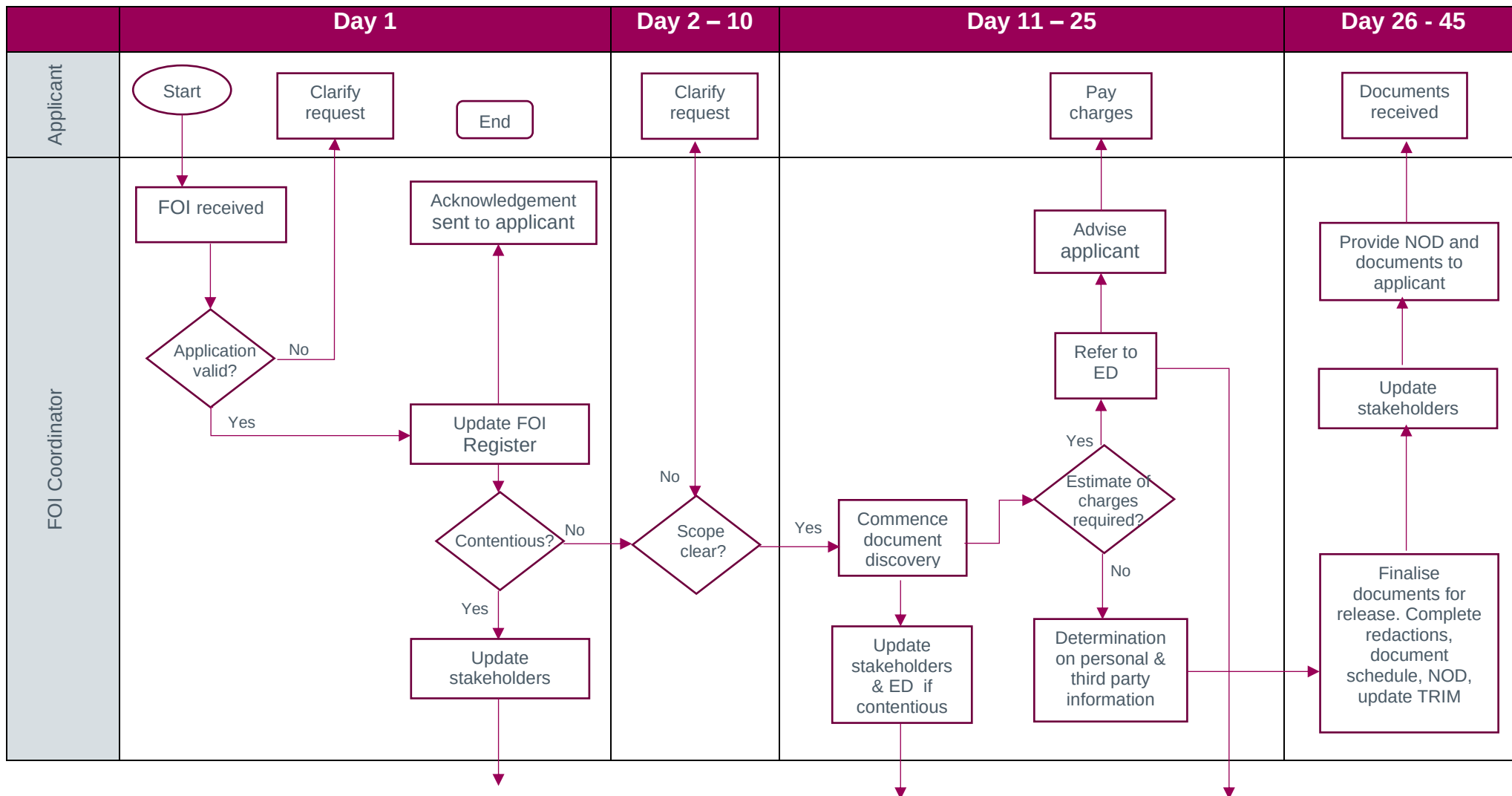
Useful resources
OIC Training for FOI Coordinators

This document can be made available in alternative formats on request for a person with a disability.

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Appendix 1. Flowchart - Managing FOI Applications



Relevant Executive Director	Contact SSO for advice		End	End	
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Appendix 2. Four Phases of FOI Application Management

Phase 1: Day zero to Day 1 – Preliminary review and notification

- Upon receipt of an FOI application the FOI Coordinator will:
 - Determine if the application is valid. If the application is invalid, the FOI Coordinator will contact the applicant to discuss.
 - Acknowledge receipt of the application via email to the applicant. This should include notification of the possible date to deliver the Notice of Decision.
 - Ensure an application fee is paid for non-personal applications.
 - Create a TRIM file and register the application and acknowledgement letter.
 - Register the application in the FOI Register with a 45 calendar day due date.
- If the FOI Coordinator considers an FOI application to be potentially contentious the FOI Coordinator will notify the following stakeholders about the application scope, applicant and due date:
 - Executive Director Business and Performance
 - Area Director Business Information and Performance
 - NMHS Office of the Chief Executive
 - Manager Corporate Communications
 - NMHS General Counsel
 - Relevant Executive Director
- Legal opinion should be sought from NMHS General Counsel on contentious issues by the relevant Executive Director with the FOI Coordinator included in all communications.
- Escalation to the NMHS Chief Executive and/or Board will be determined by the above stakeholders based on the sensitivity of the topic.

Phase 2: Day 2 to Day 10 – Review of scope and information sources

- The FOI Coordinator will:
 - a) Review the application's scope and seek clarification from the applicant as required.
 - Contact the applicant and seek further advice to narrow down or provide clarification of what information is required.
 - b) As part of document discovery, the FOI Coordinator will ensure:
 - Direct contact is made to relevant stakeholders seeking information held in repositories. Repositories include those outside of HP Records Manager (TRIM) such as Microsoft Outlook, local shared drives, personal drives and machine hard disks, business applications and shared spaces such as Microsoft SharePoint, OneDrive and Teams.
 - Staff providing the documents are reminded that emails in Outlook that are stored in the Enterprise Vault must be restored before passing on to the FOI Coordinator.
 - A timeframe is negotiated with stakeholders to respond to the request for information and documents.
 - As information is discovered within the scope of the application, ensure evidence of searches and inquiries conducted to locate the requested documents is saved to a document schedule within the TRIM file.
 - c) If the matter has been classified as contentious provide a progress update to the Stakeholders.

Phase 3: Day 11 to Day 25 – Consultation and document discovery

- The FOI Coordinator will ensure:
 - All relevant stakeholders provide information as requested within the required timeframe.
 - Any delay in response is escalated to the Executive Lead(s) and delegated manager/supervisor as required to assist in the discovery process. Refer to [NMHS Authorisations, Delegations and Decision Making Schedule](#).
- The FOI Coordinator will review the quantity of documents discovered and:
 - a) If the complexity of the request and the number of probable exemptions to be applied is extensive then calculate an estimate of charges and:
 - Refer the estimate to the relevant Executive Director for approval prior to referring to the applicant.
 - Provide the option to the applicant to reduce the scope of the application in order to reduce costs.
 - Suspend the 45 calendar day period immediately until the applicant provides advice to proceed with the application and provides a deposit. The applicant has 30 days to respond to estimate of charges or to pay a deposit. If the applicant does not give notice of their intention to proceed within 30 days, the application is regarded to have been withdrawn. In this case, on the 31st day email the applicant advising the matter is closed and advise the relevant stakeholders.
 - The 45 calendar day period resumes on the day after the applicant notifies their intention to proceed and the deposit is paid.
 - Advise the applicant and relevant stakeholders as to the new due date. Update register as required.
 - b) If third party personal information, commercial or business information is identified during the discovery process, the following steps must be taken:
 - If the FOI Coordinator decides that the third party information is exempt from the application and does not intend to give access to the information, no further consultation is required.
 - If the third party information is not exempt from the application, contact the applicant and ask whether they seek access to third party information. If they do not seek access to third party information, then that information is outside the scope of the application and can be deleted before access is given.
 - If the third party information is established to be in scope for the application, the FOI Coordinator must consult with the third party providing them with the opportunity to provide feedback and justification for an exemption.
- The FOI Coordinator will provide an update to the relevant Executive Director of documents discovered to date for contentious applications for mid process review including:
 - Outstanding information requests;
 - Any issues with consent from third parties; and
 - Preliminary redaction advice in respect to the exemption schedule.

Phase 4: Day 26 to Day 45 – Assessment and completion

- The FOI Coordinator will:
 - Ensure all documents discovered and email conversations are captured in TRIM.

- Commence assessment of documents in line with the exemptions provided for in Schedule 1 of the **FOI Act**.
- Complete the Document Schedule and a draft Notice of Decision.
- If the matter is contentious, ensure the Relevant Executive Director and/or ED, Business and Performance provides advice to Stakeholders prior to the release of documents.
- Finalise document package ensuring:
 - All documents are registered in TRIM;
 - The information classification label is applied according to the [WA Health Information Classification Labelling and Handling Minimum Requirements](#).
 - Redactions are completed with exemption decisions updated on all relevant documents.
 - The Document Schedule matches the exemption advice with brief reasons for decision.
 - The Notice of Decision is signed by the authorised FOI Coordinator.
- Provide the package to the applicant in the requested format.
- Advise the Relevant Executive Director of completion and close the matter in the register.